# Public International Law

## THE LAW OF TREATIES

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# International Law

## THE LAW OF TREATIES

# OVERVIEW

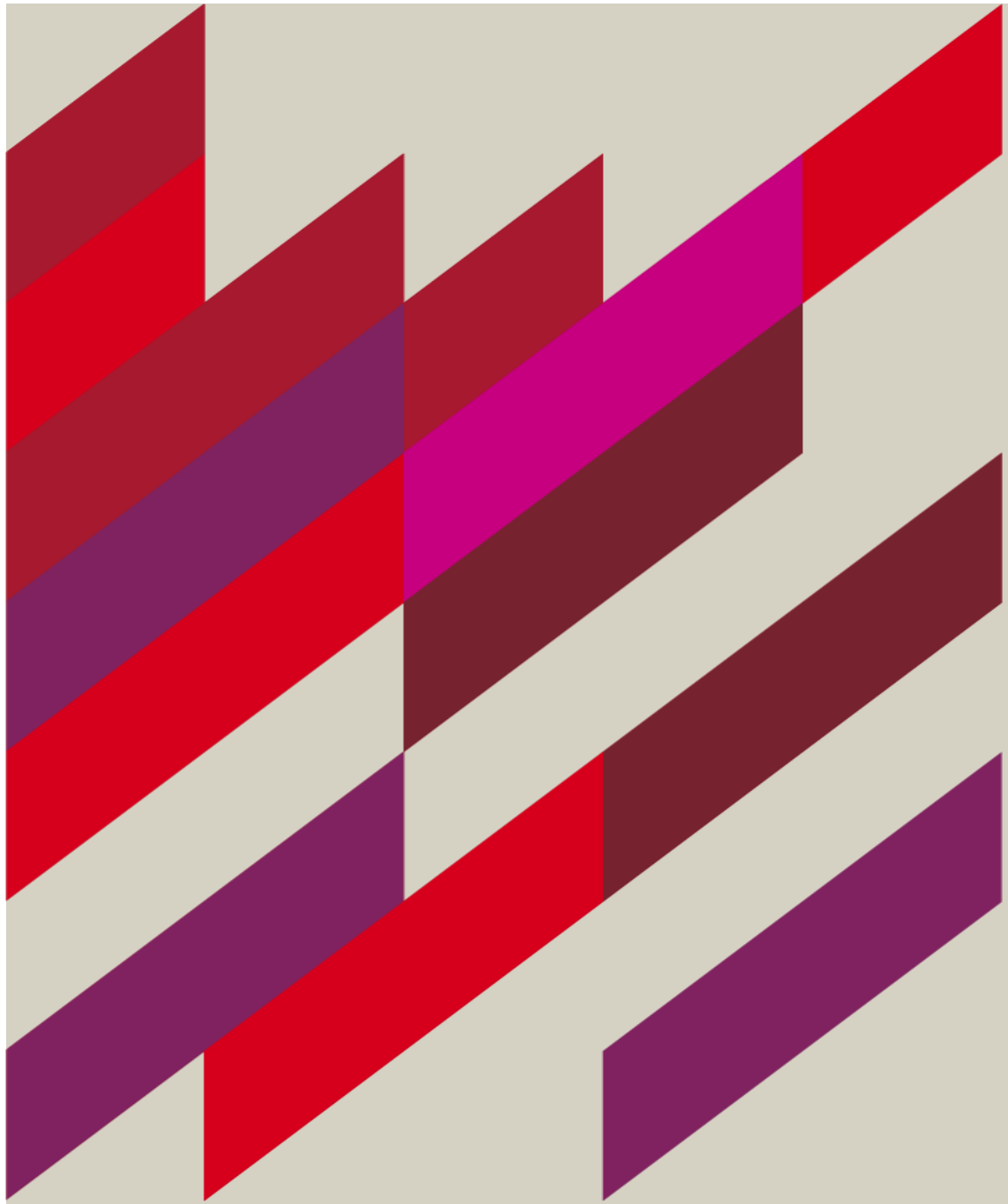
## PART A:

- Vienna Convention on the Law of Treaties
- What is a treaty
- Unilateral Statements
- Authority to Conclude Treaties
- Consent to be Bound by a Treaty (signature, ratification, entry into force)
- Provisional Application
- Invalidity of Treaties

## PART B:

- Reservations
- Treaty Interpretation

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# PART A

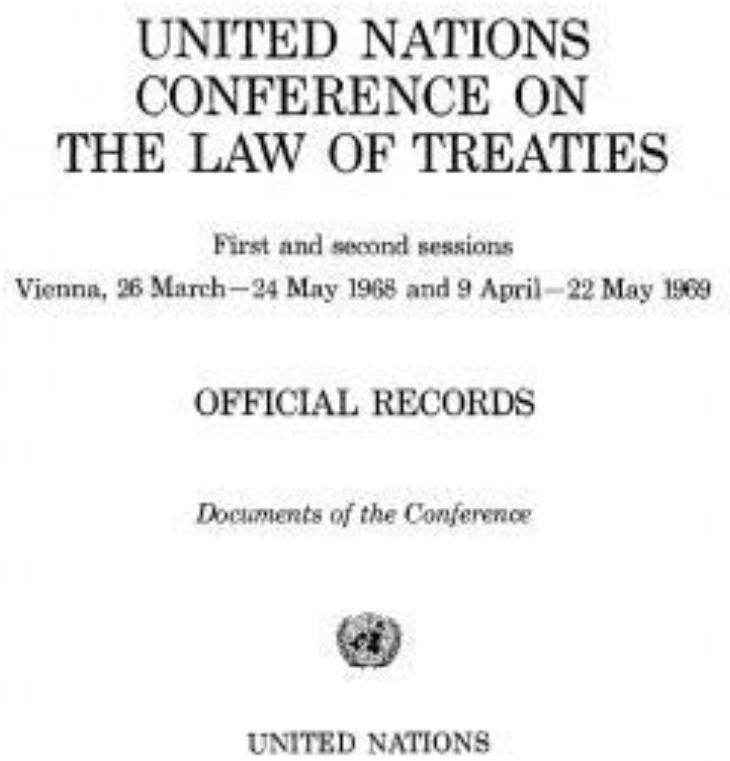
# International Law

## THE LAW OF TREATIES

**United Nations, *Vienna Convention on the Law of Treaties* (VCLT)**

**(adopted 23 May 1969; entered into force 27 January 1980)**

- The "treaty on treaties"
- Establishes rules, procedures, and guidelines for how treaties are created, drafted, amended, interpreted, and operated.
- Only applies to treaties concluded between states (Art. 1 VCLT).
- ***"the law of treaties"*** refers to the body of legal rules and principles of international law applicable to the making, operation, and termination of a treaty.


UNITED NATIONS
CONFERENCE ON
THE LAW OF TREATIES

First and second sessions
Vienna, 26 March—24 May 1968 and 9 April—22 May 1969

OFFICIAL RECORDS

*Documents of the Conference*

UNITED NATIONS

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## THE LAW OF TREATIES

### WHAT IS A TREATY

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## WHAT IS A TREATY

*Article 2 (1) VCLT*

(a) "treaty" means an ***international agreement*** ***concluded between States*** in **written form** and **governed by international law**, **whether embodied in a single instrument or in two or more related instruments** and ***whatever its particular designation***;

* Where international organizations are parties to a treaty, the **1986 Vienna Convention on the Law of Treaties between International Organizations or between States and International Organizations**, applies.

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## Intention to create rights or duties under international law

- ***Aegean Sea Continental Shelf (Greece v Turkey*) ICJ, 1978:** Press Communiqué could be considered a legally binding '*international agreement*' (para 96)

- ***Maritime Delimitation and Territorial Questions (Qatar v Bahrain)* ICJ, 1994**: written minutes from a meeting stipulated the '*commitments to which the Parties have consented*'. It therefore created rights and obligations in international law (paras 25, 30)

- ***Maritime Delimitation in the Indian Ocean (Somalia v Kenya)* (Preliminary Objections) ICJ, 2017:** A Memorandum of Understanding (MoU) between Kenya and Somalia was a treaty under international law (para 42)

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## THE LAW OF TREATIES

**UNILATERAL STATEMENTS ('Non-treaty' actions giving rise to legally binding obligations)**

"A state may evidence a clear intention to accept obligations vis-à-vis certain other states by a public declaration which is **not an offer or otherwise dependent on reciprocal undertakings** from its addressees" (Crawford, *Browlie's Principles*)

- (unilateral statements can create internationally binding obligations e.g. Eastern Greenland Case (1933) PCIJ Ser. A/B No. 53); Nuclear Test Cases (Australia v France, New Zealand v France) 1974 ICJ Rep 253.

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## THE LAW OF TREATIES

### WHO HAS THE AUTHORITY TO CONCLUDE A TREATY?

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## THE LAW OF TREATIES

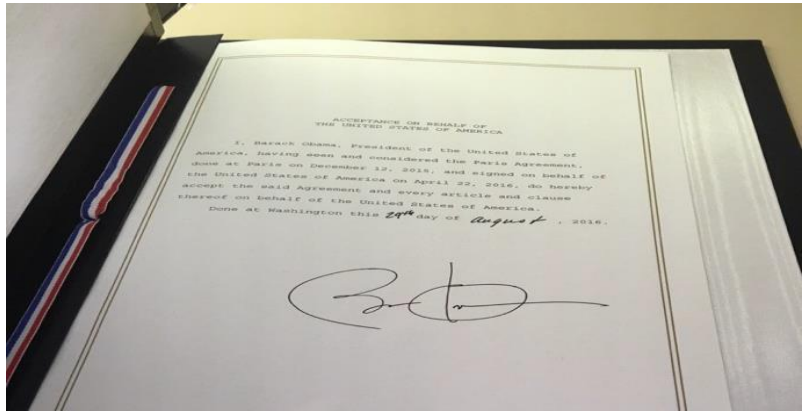
### AUTHORITY TO CONCLUDE A TREATY

- **UK:** Treaties are concluded by the Crown – Government acting under the Royal ('FOREIGN RELATIONS') Prerogative, however, Section 20 of the Constitutional Reform and Governance Act 2010, a treaty must be laid for ratification before Parliament. https://committees.parliament.uk/publications/43077/documents/214311/default/

- **USA,** 'treaties' require the 'advice and consent' of at least two thirds of the Senate, but President may make 'executive agreements' without the need to consult any other body. "Though not brought before the Senate for approval, executive agreements are still binding on the parties under international law. https://www.senate.gov/about/powers-procedures/treaties.htm#:~:text=The%20United%20States%20Constitution%20provides,become%20part%20of%20international%20law.

# International Law

## THE LAW OF TREATIES



https://obamawhitehouse.archives.gov/blog/2016/09/03/president-Obama-United-states-formally-enters-Paris-agreement

**Trump signs order to withdraw US from Paris climate agreement for second time**

On first day back as president, Trump signs letter giving notice to UN of US exit from treaty seeking to curb climate crisis effects

What executive orders did Trump sign on day one?



2016 – Barack Obama: Executive order, US joins the Paris Agreement

2017 – Donald Trump: Executive order to withdraw US from the Paris Agreement

2021 – Joe Biden: Executive order, US rejoins the Paris Agreement

2025 – Donald Trump: Executive order to withdraw from the Paris Agreement for the second time

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# Australian Constitution Art 61

## Gives the power to conclude treaties to the Executive power

Because concluding a treaty involves an element of Australia's foreign relations, the Minister for Foreign Affairs and the Department of Foreign Affairs and Trade (DFAT) have responsibility for treaties.

# International Law

- **THE LAW OF TREATIES: Australia's treaty-making process**

Two key bodies: Dept of Foreign Affairs and Trade; Office of International Law of the Attorney-General's Department

1. Lead minister must seek a **mandate to negotiate** the treaty from the Minister for Foreign Affairs (may involve Consultation with Commonwealth Gov. agencies)
2. Negotiating and finalising the treaty text
3. National Interest Analysis (NIA)
4. Approval of relevant Ministers and the Executive to sign the treaty.
5. **Signature**
6. Tabling the treaty in **Parliament for scrutiny** by the Joint Standing Committee on Treaties (JSCOT); Consultation processes/public inquiries may also be undertaken, such as with states, the general public or any other relevant stakeholders
7. Any other steps, such as passage of any implementing legislation, required to enable **ratification**, and entry into force of the treaty

Source: DFAT



# International Law

## THE LAW OF TREATIES

- **QUESTION if every state has its own treaty making procedures and requirements, how, then, can we determine which 'official or entity' is competent under international law to give consent on behalf of a state and bind that state internationally?**

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*Article 7*
*Full powers*

1. A person is considered as representing a State for the purpose of adopting or authenticating the text of a treaty or for the purpose of expressing the consent of the State to be bound by a treaty if:

(*a*) he produces appropriate full powers; or

(*b*) it appears from the practice of the States concerned or from other circumstances that their intention was to consider that person as representing the State for such purposes and to dispense with full powers.

2. In virtue of their functions and without having to produce full powers, the following are considered as representing their State:

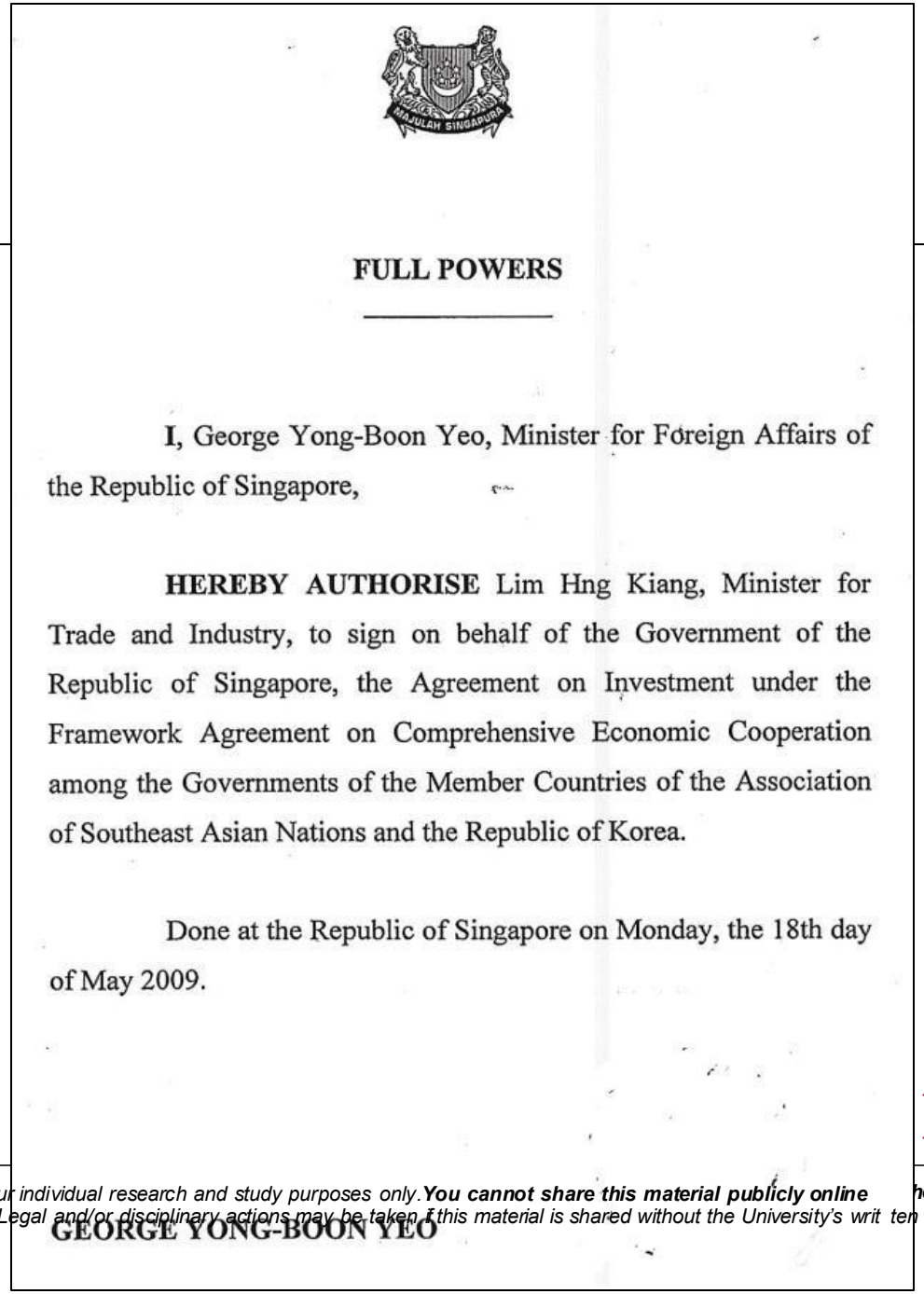
(*a*) Heads of State, Heads of Government and Ministers for Foreign Affairs, for the purpose of performing all acts relating to the conclusion of a treaty;

(*b*) heads of diplomatic missions, for the purpose of adopting the text of a treaty between the accrediting State and the State to which they are accredited;

(*c*) representatives accredited by States to an international conference or to an international organization or one of its organs, for the purpose of adopting the text of a treaty in that conference, organization or organ.

# International Law

## THE LAW OF TREATIES



FULL POWERS

I, George Yong-Boon Yeo, Minister for Foreign Affairs of the Republic of Singapore,

**HEREBY AUTHORISE** Lim Hng Kiang, Minister for Trade and Industry, to sign on behalf of the Government of the Republic of Singapore, the Agreement on Investment under the Framework Agreement on Comprehensive Economic Cooperation among the Governments of the Member Countries of the Association of Southeast Asian Nations and the Republic of Korea.

Done at the Republic of Singapore on Monday, the 18th day of May 2009.

GEORGE YONG-BOON YEO

Source: Handbook on Good Treaty Practice , 438 - 439

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# TO BE BOUND BY A TREATY…

Consent to be bound (Art 11-17, VCLT)

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## THE LAW OF TREATIES: CONSENT TO BE BOUND

*Article 11*
*Means of expressing consent to be bound by a treaty*

The consent of a State to be bound by a treaty may be expressed by signature, exchange of instruments constituting a treaty, ratification, acceptance, approval or accession, or by any other means if so agreed.

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## THE LAW OF TREATIES: ENTRY INTO FORCE

By contrast…

***Maritime Delimitation in the Indian Ocean (Somalia v Kenya) 2017:***
Kenya and Somalia signed an MoU, which expressly stated that the memorandum *entered into force* only upon signature.

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## THE LAW OF TREATIES: THE RELATION BETWEEN SIGNATURE & RATIFICATION

**Article 14 of VCLT, <u>ratification is required if:</u>**

- it is specified in the treaty itself;
- the negotiating parties agreed that it was needed;
- the representative who signed the treaty did so subject to ratification; or
- it appeared from the full powers of the representative or it was expressed during the negotiation that that was the intention of the state.

* A case-by-case assessment



**<u>1. 'Signature' and 'Ratification'</u>**



In some instances, treaties are effective only upon signature

In other instances, treaties are effective **only upon 'ratification'**



*Signature* signifies a state's intention to become a party to a treaty



*Ratification* [if required] signifies the state's formal acceptance of the treaty's obligations and that the treaty is legally binding on the state.

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## THE LAW OF TREATIES: ENTRY INTO FORCE

# ‘Entry into force’

**“A treaty enters into force in such manner and upon such date as it may provide or as the negotiating States may agree”** (Art 24, VCLT)

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## THE LAW OF TREATIES: ENTRY INTO FORCE

‘Example: 1982 UN Law of the Sea Convention

*Article 306*
*Ratification and formal confirmation*

This Convention is subject to ratification by States and the other entities referred to in article 305, paragraph l(b), (c), (d) and (e), and to formal confirmation, in accordance with Annex IX, by the entities referred to in article 305, paragraph l(f). The instruments of ratification and of formal confirmation shall be deposited with the Secretary-General of the United Nations.

*Article 308*
*Entry into force*

1. This Convention shall enter into force 12 months after the date of deposit of the sixtieth instrument of ratification or accession.

The UN Law of the Sea Convention was finalised and opened for ratification in 1982 but only entered into force in 1994 upon deposition of the 60th instrument of ratification.

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## Legal effect of signature pending ratification

PROVISIONAL APPLICATION OF A TREATY (interim period)

Art 18, VCLT
A State is obliged to refrain from acts which would defeat the object and purpose of a treaty when:

a) It has signed the treaty or has exchanged instruments constituting the treaty subject to ratification, acceptance or approval, until it shall have made its intention clear not to become a party to the treaty; or
b) It has expressed its consent to be bound by the treaty, pending the entry into force of the treaty and provided that such entry into force is not unduly delayed.

Art 25, VCLT
A treaty or a part of a treaty is applied provisionally pending its entry into force if:

a) The treaty itself so provides; or
b) The negotiating States have in some other manner so agreed

# International Law

## INVALIDITY OF TREATIES

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## Grounds for Invalidity

Relative invalidity Arts. 46-50
Absolute invalidity: Arts. 51-53

## Issue with consent

- **Error** (Art 48, VCLT
- **Fraud** (Art 49, VCLT)
- **Corruption** of a representative of a state (Art 50, VCLT)
- **Coercion** (Art 51, VCLT)
- **Threat or use of force** (Art 52,VCLT)

# International Law

## INVALIDITY OF TREATIES

**ALSO**

## Conflict with a peremptory norm of general international law (also known as *jus cogens*)

Art 53,VCLT

"A treaty is void if, at the time of its conclusion, it conflicts with a peremptory norm of general international law. For the purposes of the present Convention, a peremptory norm of general international law is a norm accepted and recognized by the international community of States as a whole as a norm from which **no derogation is permitted** …."

e.g. prohibition of torture and genocide; prohibition of aggression; ban on crimes against humanity, the prohibition of piracy, the right to self- determination.

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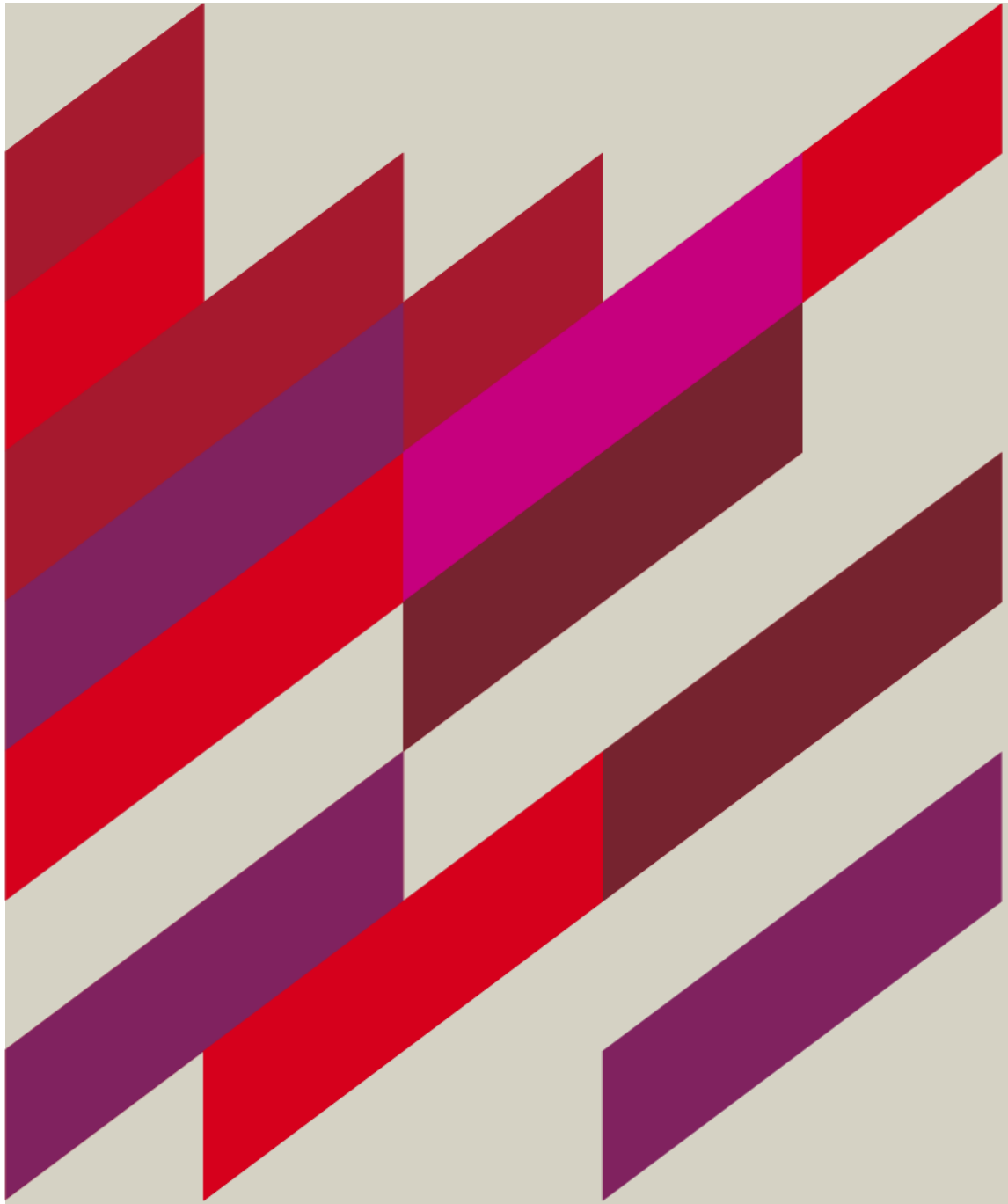
# International Law

## INVALIDITY OF TREATIES

**A treaty is not invalid if:**

1. **Violation of internal law re. competence to conclude treaties** (Art 46, VCLT) (a state cannot invoke the fact that its consent to be bound by a treaty was expressed in violation of its internal law, unless the violation *was 'manifest and concerned a rule of its internal law of fundamental importance')*

*Case Concerning the Law and Maritime Boundary between Cameroon and Nigeria (Cameroon v. Nigeria: Equatorial Guinea intervening*), ICJ Judgment of 10 Oct. 2002.



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# PART B

# RESERVATIONS (Arts 2(d), 19-23, VCLT)

**See also: ILC 'Guide to Practice on Reservation to Treaties 2011'**

Art 2 (*d*), VCLT

"reservation" means a unilateral statement, however phrased or named, made by a State, when signing, ratifying, accepting, approving or acceding to a treaty, *whereby it* ***purports to exclude or to modify the legal effect of certain provisions of the treaty*** *in their application to that State*

* Not to be confused with ***interpretative declaration:*** an expression of view by a declarant state as to the meaning of a treaty which is not put forward as a condition of being bound; only explanatory in character

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## RESERVATIONS (when a reservation is permitted)

*Article 19*
*Formulation of reservations*

A State may, when signing, ratifying, accepting, approving or acceding to a treaty, formulate a reservation unless:

(*a*) the reservation is prohibited by the treaty;

(*b*) the treaty provides that only specified reservations, which do not include the reservation in question, may be made; or

(*c*) in cases not failing under subparagraphs (*a*) and (*b*), the reservation is incompatible with the object and purpose of the treaty.

# International Law

## THE LAW OF TREATIES

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### RESERVATIONS (when a reservation requires acceptance)

*Article 20*

*Acceptance of and objection to reservations*

1. A reservation expressly authorized by a treaty does not require any subsequent acceptance by the other contracting States unless the treaty so provides.

2. When it appears from the limited number of the negotiating States and the object and purpose of a treaty that the application of the treaty in its entirety between all the parties is an essential condition of the consent of each one to be bound by the treaty, a reservation requires acceptance by all the parties.

3. When a treaty is a constituent instrument of an international organization and unless it otherwise provides, a reservation requires the acceptance of the competent organ of that organization.

## THE LAW OF TREATIES

### PERMISSIBLE RESERVATIONS (options & effect)

a) Other states may accept the reservation (if a state accepts a reservation by another state they will be parties to the same treaty)

b) Other states may object to the reservation (If a state objects to another state's reservation the treaty will not enter into force between the two states).

a) A state's reservation only becomes effective when at least one other contracting state has accepted it.

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## THE LAW OF TREATIES

***Question: what would be the legal effect/consequences of an invalid reservation to a treaty?***

- A reservation that does not meet the conditions of validity and permissibility is **null and void**, and therefore **devoid of any legal effect**. Other states are not obliged to object or accept.
  - Solution 1: **Reserving State does not become party to the treaty**
  - Solution 2: **Reserving State becomes party to the treaty without the reservation**
  - Solution 3: **Reserving becomes party to the treaty without the reservation, unless "it has expressed a contrary intention"**

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## THE LAW OF TREATIES

### TREATY INTERPRETATION

- Parties have competence to interpret a treaty, but subject to the operation of legal rules
- Various ‘rules’ for interpreting treaties have been put forward over the years (plain meaning rule, overall context rule, teleological rule, supplementary rule etc.)
- Present regime: **Arts 31 & 32, VCLT** (reflect customary law)

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## THE LAW OF TREATIES

- ***Article 31 (1) 'General rule of interpretation'***

A treaty shall be interpreted in good faith in accordance with the ***ordinary meaning*** to be given to the terms of the treaty in their *context* and in the *light of its object and purpose*.

- ***Article 32 'Supplementary means of interpretation'***

Recourse may be had to supplementary means of interpretation, including the **preparatory work of the treaty and the circumstances of its conclusion**…when the interpretation according to article 31:

a) leaves the meaning ambiguous or obscure; or

b) leads to a result which is manifestly absurd or unreasonable.

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## THE LAW OF TREATIES

### General Rule, Art 31(1) VCLT

- Ordinary Meaning (common/ordinary sense)
- Context of the treaty as a whole (e.g. text, its preamble, annexes, any agreement or instrument related to the treaty and drawn up in connection with its conclusion e.g. parties may make an agreement regarding the interpretation of the treaty)
- Overall object and purpose of the treaty (teleological interpretation)

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## THE LAW OF TREATIES

### Supplementary Rules, Art 32 VCLT

Travaux Préparatoires & Circumstances of Conclusion

| Co-text (Art. 31 § 2, VCLT)[a] | Strict context (Art. 31 § 3, VCLT)[b] | Broad context (Art. 32 § 1, VCLT)[c] |
|---|---|---|
| • preamble + text + annexes of the treaty<br>• agreement relating to the treaty<br>• instrument in connection with the conclusion of the treaty | • subsequent agreement<br>• subsequent practice<br>• relevant rules of international law | • preparatory work of the treaty<br>• circumstances of conclusion of the treaty |

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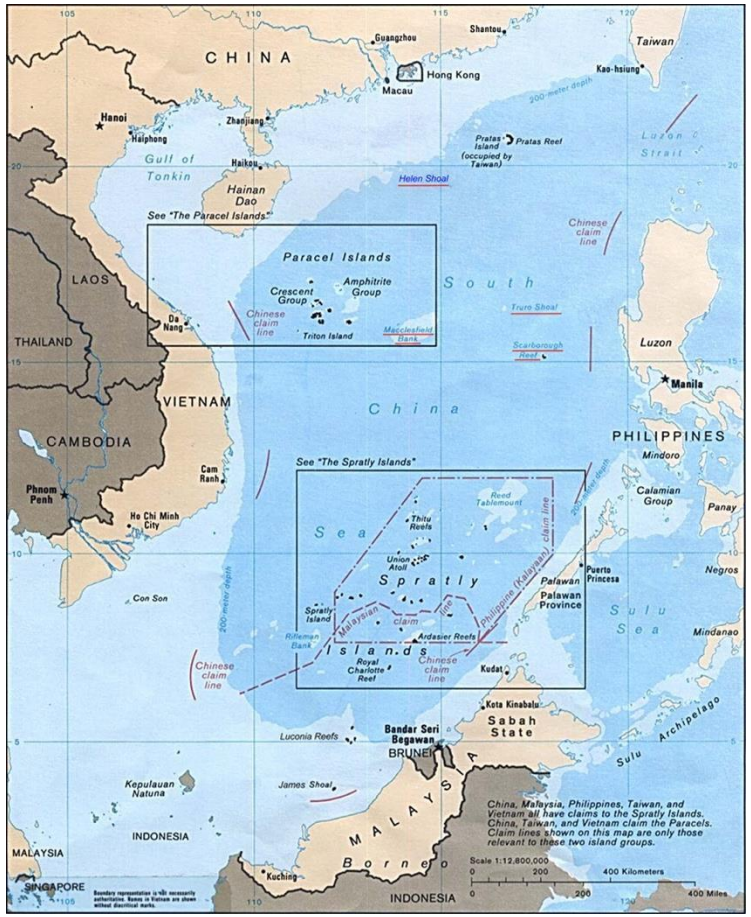
**e.g. *South China Sea Arbitration (The Philippines v. China)***

**Subject of interpretation:**

**Art 121, UNCLOS 'Regime of Islands'**

1. An **island** is a naturally formed area of land, surrounded by water, which is above water at high tide. […]

2. **Rocks** which cannot sustain **human habitation** or **economic life of their own** shall have no exclusive economic zone or continental shelf.




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## THE LAW OF TREATIES

476. In order to interpret this provision, the Tribunal must apply the provisions of the Vienna Convention on the Law of Treaties.[520] The general rule of interpretation is set out in Article 31 of the Vienna Convention and provides that a treaty "shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose."[521] Further, "any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation" shall be taken into account. Pursuant to Article 32 of the Vienna Convention, as supplementary means of interpretation, recourse may be had to the preparatory work of the treaty to confirm its meaning, or determine the meaning when it is otherwise ambiguous, obscure, or leads to a manifestly absurd or unreasonable result.[522]

477. In approaching the interpretation of Article 121, the Tribunal will separately review the text, its context, the object and purpose of the Convention, and the *travaux préparatoires*, before setting out the conclusions that, in the Tribunal's view, follow with respect to the meaning of the provision.

***South China Sea Arbitration (The Philippines v. China) (Award on Merits 12 July 2016)***

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